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Speaker 1

Extremism: A Complex Challenge

Introduction

Definition of extremism:

The holding of extreme views or beliefs that go beyond what is considered reasonable or acceptable in society. It often leads to intolerant attitudes and in some cases, violent actions.”

Have you ever thought that when faith and freedom clash, who gets to decide the limits? Today, we'll take a deep dive into the complex world of blasphemy laws, their origins, and the hard questions they raise.

Let's start with the definition:

Blasphemy—it's when someone's words or actions cross the line, disrespecting the sacred beliefs, symbols, or figures that people hold dear. Blasphemy laws

were introduced to protect these beliefs, but there's a twist: How do we protect faith without these laws becoming tools of fear or suppression? That's the tricky balance we need to explore.

Objectives of this presentation

- To argue that blasphemy should not be treated as a Hadd offence.
- To underscore that there is no ijma on the existence of a mandatory death penalty for non-Muslims.
- To underscore that the current narrative on the law is not an accurate representation of the Hanafi tradition and therefore, not an accurate representation of the Islamic legal tradition.
- To argue that the law cannot be indiscriminately applied to both Muslims and non-Muslims.
- To highlight the fact that the option of a pardon exists within the Islamic legal tradition for those who insult the Prophet.

A Brief history:

Starting with Abrahamic religions like Jews and Christians.

Jewish history:

In Jewish history, blasphemy was considered a grave offense under the Torah, specifically prohibiting disrespect toward God's name (Leviticus 24:16). It was punishable by death in ancient Israel, reflecting the centrality of reverence for God in Jewish law and culture.

Christian's history:

In Christian history, blasphemy was viewed as a severe sin, particularly in medieval times, involving disrespect toward God. It was often met with harsh punishments, including death

One well-known incident of blasphemy in Christian history is the trial and execution of Giordano Bruno (who was a philosopher) in 1600.

Hindu religion:

In Hindu history, blasphemy was typically seen as disrespect toward sacred deities or practices, often resulting in social ostracism or public humiliation.

Suppression of free speech against the tyrants:

Tyrannical regimes often use blasphemy laws to suppress free speech, as seen and then in 1633, Galileo was tried for heresy and blasphemy by the Catholic Church for supporting the heliocentric model, leading to his forced recantation and house arrest. This incident highlights how accusations of blasphemy were used to silence intellectual and religious dissent.

Speaker 2

Now, let's shift gears and talk about some history.

When the British came to India, they introduced one of the most controversial laws in the subcontinent's history—blasphemy laws. The British enacted these laws in 1860 under Section 295 of the Indian Penal Code (IPC), and these laws became deeply embedded in Indian society. After the partition in 1947, these laws evolved uniquely in both Pakistan and India.

Rajpal Case:

In 1927, the Rajpal Case became one of the most important events in blasphemy law history. It centered around a book called *Rangila Rasul*, which satirized the Prophet Muhammad (PBUH). Rajpal, the Hindu publisher, was charged under Sections 295 and 298 of the IPC for insulting religion. But the court set him free. In 1929, he was murdered by Ilm-ud-din, a man seeking revenge for the perceived insult. This was one of the first cases where extra judicial killing of a person on blasphemy occurred.

Pakistan:

Fast forward to our own country. General Zia-ul-Haq introduced neo-Islamization to the country. For instance,

Section 298(a)

In 1980, in the Pakistan Penal Code criminalizes any act or speech that dishonors the Prophet Muhammad Shaba. This was the first law related to blasphemy to be passed by the Pakistani state.

Section 295(b): Zia-ul-Haq also passed 295-B which made the defiling of the Quran a crime punishable by life in prison.

298-B and 298-C: Which imposed restrictions on the Ahmadiyya community from using Islamic titles and epithets, and from "posing" as Muslims or referring to their religion as Islam.

But now comes the elephant in the room:

In 1984, a lawyer, Ismail Qureshi, approached the Provincial Shariat Court and said there is no law that covers the crime of insulting the Prophet. He falsely told them that Muslim scholars have ijma on the death penalty on blasphemy. This led to the introduction of Section 295(c), which imposed the death penalty for blasphemy against the Prophet Muhammad (PBUH).

Section 295-C:

Also introduced during Zia-ul-Haq's reign. It is important to note that 295-C was not actually passed through a presidential ordinance. Instead, in 1986, a private bill was introduced in the parliament which called for an amendment to Section 295-C of the Pakistan Penal Code to include the death penalty as a punishment for individuals who specifically insulted the Prophet Muhammad.

Nawaz era:

In 1991, after a Federal Shariat Court Judgment responding to Ismael Qureshi's petition, the punishment of life imprisonment was removed from the law, making the death penalty mandatory and fixed, without any possibility of pardon. despite 4 ulamas out of seven giving verdict against death penalty, it was forcefully imposed by Nawa sharif.

Section 295-C finally took on the form that it has retained till this day.

Now Pakistan is only some of the countries like fundamentalist countries Iran and SA where the punishment of blasphemy is death penalty.

Speaker 3

Strict punishment for blasphemy is often presented as essential to preserving the honor of the Prophet Muhammad (PBUH), maintaining societal order, and upholding Islamic principles.

The Love of the Prophet Muhammad (PBUH) in Islam

For Muslims, Prophet Muhammad (PBUH) is not just a spiritual guide but the embodiment of excellence.

The Quran explicitly states in **Surah Al-Ahzab (33:6)** that the Prophet is "**dearer to the believers than their own selves**," making any disrespect toward him not just an insult to faith, but a personal attack on their identity and values.

Blasphemy and the Boundaries of Free Speech

In today's globalized world, free speech often clashes with the sacred beliefs of Muslims. Offensive acts like *The Satanic Verses* by Salman Rushdie and cartoons of Prophet Muhammad (PBUH) in *Charlie Hebdo* are seen as deliberate provocations, not just opinions. Muslims argue that free speech should come with responsibility and respect, as such insults to sacred figures deepen grief and tensions, further dividing societies.

Muslims believe free speech should come with responsibility and respect for others' beliefs. Insults to sacred figures misuse free expression, disregarding the deep emotional and spiritual significance they hold. These acts not only cause grief but also fuel tensions and divide societies.

From Islamic Sharia:

Scholars like **Imam Ahmad bin Hanbal** have supported severe penalties for blasphemy, arguing that it serves as both justice for the crime and a deterrent for others.

Ibn Taymiyyah, in his work **As-Sarim Al-Maslul Ala Shatim Ar-Rasul**, holds that the deliberate insult of the Prophet by a Muslim is an act of apostasy, deserving the death penalty.

Similarly, **Al-Bazzazi**, a Hanafi jurist, stated that blasphemy by a Muslim is so grave that it takes precedence over repentance, as it disrupts societal harmony and insults the foundation of Islam.

Speaker 4

Blasphemy Law and Its Misapplication in Pakistan: A Historical Overview

In Pakistan, where Muslims make up 96% of the population, 80% are Sunni Muslims, with the remaining 20% divided between Shia and Wahhabi sects. The application of blasphemy law, however, primarily targets non-Muslims, though it has been widely misunderstood and misapplied.

Definitions: Hadd vs Tazeer

Hadd refers to fixed punishments for certain offenses as intended by Allah, considered mandatory under Islamic law, while **Tazeer** pertains to discretionary punishments for other crimes, left to the discretion of the Islamic judge.

The Sunni Perspective on Blasphemy

According to the Hanafi school of thought, led by **Abu Hanifa** (8th century), blasphemy is a judicial matter, not a fixed penalty (Hadd). This view, reinforced by **Ibn Taymiyyah** (12th century), argues that while blasphemy is a serious offense, it is not a fixed Hadd punishment for non-Muslims.

In the 14th century, **Al-Bazzazi** misinterpreted Abu Hanifa's position, erroneously asserting that non-Muslims (Zimi) who insult the Prophet Muhammad (PBUH) should be executed. However, in the 19th century, Ottoman jurist Ibn Abidin corrected this mistake and reaffirmed Abu Hanifa's stance, confirming that non-Muslims should not face the death penalty for blasphemy.

The Misuse of Islamic Jurisprudence

In the 20th century, lawyer Ismail Qureshi distorted these views to argue that non-Muslims should receive the death penalty for blasphemy, leading to the introduction of Section 295-C of Pakistan's penal code in 1984. Qureshi falsely claimed that there was a consensus (ijma) among Muslim scholars for the death penalty in such cases. This led to the 1991 Federal Shariat Court judgment, making the death penalty mandatory for blasphemy.

In 2013, when Arafat Mazhar approached Ismail Qureshi regarding his petition on blasphemy laws, it was revealed that Qureshi had limited knowledge of Arabic, the foundational language of Islamic texts. According to Mazhar, Qureshi acknowledged his mistake in the legal petition but declined to publicly admit it. This admission highlighted the flawed basis upon which Qureshi's arguments were built, yet he refrained from correcting his stance in the public sphere.

However, the true Islamic stance—particularly within the Hanafi tradition—is that non-Muslims should not face death for insulting the Prophet Muhammad (PBUH). Instead, if a non-Muslim insults the Prophet, they should face verbal condemnation, but execution is not mandated.

Misinterpretation of Islamic Texts

The Pakistani Parliament, in its support for Section 295-C, incorrectly cited books such as *Al-Sarim Al-Maslool* and *Fatawa-e-Alamgiriyyah*, claiming an ijma (consensus) on the death penalty for blasphemy. However, a close examination of these texts reveals that they do not support the death penalty for non-Muslims. Ibn Abidin, in *Fatawa-e-Shami*, explicitly states that non-Muslims should not be killed for insulting the Prophet Muhammad (PBUH).

Recent Developments and Critique (miliciuos intent)

Mufti Taqi Usmani, a respected Sunni scholar, has also stated that the death penalty for blasphemy does not apply to non-Muslims under the Hanafi school.

Article 295-C of the Pakistani Penal Code, which imposes the death penalty for blasphemy, misuses the term “whoever,” making it seem that both Muslims and non-Muslims are equally subject to the same punishment. However, non-Muslims should not face the death penalty or life imprisonment for blasphemy. The law also contains the problematic term “innuendo,” which could lead to false accusations based on minimal evidence, such as a person accidentally dropping a card with the Prophet's name on it. This vague terminology has led to unjust accusations, as seen in the recent case of Mufti Tariq Masood, who was accused of blasphemy due to a statement and was forced to seek asylum abroad.

Conclusion

The misapplication of blasphemy laws in Pakistan, especially the claim that non-Muslims should face death for insulting the Prophet Muhammad (PBUH), is a distortion of Islamic jurisprudence. The actual teachings of Sunni scholars, particularly within the Hanafi tradition, do not support the death penalty for non-Muslims in cases of blasphemy. It is crucial to distinguish between correct interpretations of Islamic law and the political misuse of such laws, which can cause harm and division in society.

Those who have stated that the penalty for blasphemy is death have referred specifically to *dhimmis* (non-Muslims under Muslim rule). However, there is no country in the world where the *dhimmi* status treaty was fully implemented after the abolition of such laws in the Ottoman Empire. The concept of *dhimmi* was largely dismantled during the decline of the Ottoman Empire, and its application is no longer relevant in contemporary Muslim-majority countries.

What is Mob Lynching?

Mob lynching refers to a group of people taking the law into their own hands, violently attacking and often killing someone without any legal authority or due process. It's driven by anger, prejudice, or the desire for vigilante justice.

Effects of Mob Lynching

The rise of mob violence in Pakistan highlights the lack of state security and the misuse of blasphemy laws. Let's take a closer look at some tragic cases:

1. Asia Bibi Case

In 2009, Asia Bibi, a Christian woman, was accused of blasphemy after a dispute with Muslim women over drinking water from the same container. She was sentenced to death, sparking international outrage. After nearly a decade, Pakistan's Supreme Court acquitted her in 2018, citing insufficient evidence. However, her acquittal led to nationwide protests by extremist groups. A cleric, Maulana Yousaf Qureshi, even announced a bounty of 500,000 rupees for her assassination. Asia Bibi was forced to flee Pakistan to save her life.

2. Salman Taseer Case

In 2011, Punjab Governor Salman Taseer was assassinated by his bodyguard, Mumtaz Qadri, for opposing Pakistan's blasphemy laws and supporting clemency for Asia Bibi. Qadri was misguided by a clerk in Islamabad masjid, who later refused to take the responsibility and didn't show his Iman on "Gulami e Rasool me Maut bhi qabool ha". Though Qadri was executed in 2016, this case became a defining moment in the debate over extremism and vigilante justice in Pakistan.

3. Mashal Khan Case

In 2017, Mashal Khan, a 23-year-old university student, was lynched by fellow students in Mardan after being falsely accused of blasphemy. The mob brutally beat and killed him, showcasing the deadly consequences of rumors and mob mentality. The case highlighted the grave misuse of blasphemy laws and the dangerous rise of vigilante justice.

4. **Swat Case**

In June 2024, in Pakistan's Swat Valley, a tourist was accused of desecrating the Quran and was brutally lynched and burned by a mob. This recent tragedy underscores the increasing brutality of mob violence driven by unproven allegations.

5. **Priyantha Kumara Case**

In 2021, Priyantha Kumara, a Sri Lankan factory manager in Sialkot, was falsely accused of blasphemy and killed by a mob of factory workers. He was beaten to death and burned in public. The government condemned the act, arresting over 100 people, with many convicted. This case revealed how blasphemy accusations are often weaponized, leading to horrifying consequences.

Misuse of Blasphemy Laws

Blasphemy laws, originally meant to protect religious harmony, have become a tool for:

1. **Personal Gain:**

People often misuse these laws to settle personal scores, whether over property disputes, business rivalry, or personal grudges. A false blasphemy accusation can ruin someone's life.

A prominent example of someone accused of using blasphemy laws for personal gain is **Khaleel Tahir Sindhu**, a lawyer and former **Member of the Punjab Assembly**. In 2013, Sindhu was alleged to have exploited blasphemy allegations against a Christian man over a land dispute. The man was accused of desecrating the Quran, a charge widely believed to have been fabricated to pressure him into surrendering his property.

2. **Misinterpretation of Religion**

Some individuals twist religious teachings to suit their narrative, claiming blasphemy where none exists, and using it to silence differing viewpoints.

For example:

Ismail qureshi misinterpreted fatwas to make sure that section 295c was passed.

Problems with Blasphemy Laws

Blasphemy laws in Pakistan are deeply problematic:

1. Weapon Against Minorities

These laws are often used as a tool for persecution, especially against non-Muslims, who are more vulnerable to accusations.

2. Fear Over Freedom

These laws create an environment of fear, stifling debate, creativity, and intellectual freedom. For example, Salman Rushdie's literary works sparked outrage, but they also highlighted the tension between rigid interpretations of religion and free expression.

Conclusion:

From 1851 to 1947, when the British ruled this region, there were only seven blasphemy-related incidents but during Zia's rule alone (1977-1988), as many as 80 blasphemy cases were reported to the courts. As a whole, between 1987 and Aug. 2012 we have seen almost 247 blasphemy cases registered, directly affecting lives of 435 persons approximately. Moreover, figures suggest that since 1990, 52 people have been accused of blasphemy. According to data compiled by nongovernmental organizations (NGOs) and cited by the U.S. State Department, a total of 695 people were accused of blasphemy in Pakistan between 1986 and April 2006. The Pakistani daily newspaper Dawn has reported that some 5,000 cases were registered between 1984 to 2004, and 964 people Freedom House were charged with blasphemy.

While not all accused are innocent, extrajudicial killings, such as 14 reported in 2023 alone, highlight the deep injustice in how these laws are enforced. Reform is vital—not to blasphemy, but to ensure due process, prevent misuse, and align actions with the Islamic principles of justice and mercy.